

"[U]nder California law "[i]t is generally recognized that a statutory governmental immunity overrides a statute imposing liability." [Citations.] Thus, absent "a clear indication of legislative intent that statutory immunity is withheld or withdrawn," a specific statutory immunity applies to shield a public employee from liability imposed by a particular statute." (*O'Toole v. Superior Ct.* (2006) 140 Cal. App. 4th 488, 504 [Applying immunity under Gov't. Code § 820.6.]; See also, *Towery v. State of California* (2017) 14 Cal. App. 5th 226, 235-37.) "On our examination of Civil Code section 52.1, we have found no indication the Legislature intended to create an exception to the general rule. Civil Code section 52.1 contains no indicia reflecting an intent that public employees may be sued despite a statutory immunity that would otherwise apply." (*O'Toole, supra*, 140 Cal. App. 4th at 504.)

Defendants have successfully met their initial burden of proving a complete defense to this COA pursuant to Gov't. Code § 820.2. The burden now transfers to Plaintiff to show triable issues of material fact remain.

Plaintiff argues, "instead of interpreting "discretionary" literally, the focus should be on the policy considerations underlying the governmental entity's claim of immunity." (*Steinle v. City & Cnty. of San Francisco*, 919 F.3d 1154, 1160–61 (9th Cir. 2019).) However, the policy considerations in granting police immunity in this situation favor granting the motion instead of denying it. Although Plaintiff was threatened with arrest, she was never arrested. Although the officers might have violated the COVID eviction moratorium, they acted in their discretion in doing so in order to keep the peace. Gov't Code § 820.2 was designed to protect (among others) police who exercise their discretion. Here, the officers arrived for what is essentially a trespass/domestic disturbance call, were provided information that Plaintiff had illegally entered the property, and the officers attempted to work out a peaceful resolution in a potentially volatile situation that occurred in the early stages of a worldwide pandemic. This is the type of situation where in public policy would support providing immunity to the officers to keep the peace and find peaceful solutions to potentially volatile disagreements. The officers have sufficiently pled a valid defense to Ralph Act with Gov't Code § 820.2.

As the officer defendants are immune pursuant to Gov't Code § 815.2, there can be no liability as to the County. (Gov't Code § 815.2)

Additionally, as Plaintiff produced no evidence of any violence perpetrated on her or her property other than a deposition testimony, Plaintiff cannot maintain this COA. The mere threat of an arrest, and in some instances an arrest itself, are not enough to support a Ralph Act claim. "Unlike section 52.1 [Bane Act], section 51.7 [Ralph Act] expressly requires that a plaintiff allege "violence, or intimidation by threat of violence." Cal. Civ. Code § 51.7(a). We agree with the district court that an arrest or threat of arrest alone does not necessarily involve violence or a threat of violence."

(*Moreno v. Town of Los Gatos*, 267 F. App'x 665, 666–67 (9th Cir. 2008).)

As Plaintiff has also produced no evidence of actual violence towards her or threats of actual violence towards her, she cannot prevail on this COA.

The Motion is **GRANTED** as to this COA.

2) COA No. 14 – Bane Act – Civ. Code § 52.1

As with the Ralph Act (*supra*) Defendants have provided a valid defense to the Bane Act with Gov't Code §§ 820.2 and 815.2. (*Towery, supra*, 14 Cal. App. 5th at 234-36.)

The Motion is **GRANTED** as to this COA.

3) COA No. 16 - Battery

Plaintiff previously dismissed County and Doty from this COA. (ROA ##102, 104.) Only the claims against Hertz and Olukoju remain.

"A claim served on a governmental entity must fairly describe what that entity is alleged to have done. A theory of recovery not included in the claim may not thereafter be maintained. [Citations.] However, while the circumstances described in a claim must substantially correspond with the causes of action pled, the claim need not conform to pleading standards. [Citation.] "The primary function of the [Government Tort Claims Act] is to apprise the governmental body of imminent legal action so that it may investigate and evaluate the claim and where appropriate, avoid litigation by settling meritorious claims. [Citations.]" " (*Shoemaker v. Myers* (1992) 2 Cal. App. 4th 1407, 1426.)

As to Plaintiff's Government Tort Claim, Plaintiff identified the employees who allegedly caused her injury (Doty, Hertz, and unidentified African-American Deputy who claimed he was a supervisor ~ Olukoju), she gave the date, the location, and the names of witnesses. (TAC, Ex. 10.) As to the facts, the claim in essence states the officers arrived at the Property wherein Plaintiff was a lawful resident. Plaintiff had previously been notified by officer Doty that law enforcement had no legal right to remove Plaintiff. The defendant officers arrived and threatened Plaintiff with violence and forcible arrest if she did not vacate the Property. It appeared the officers knew the homeowner and were doing an illegal personal favor for the homeowner. The supervising officer (Olukoju) threatened Plaintiff with violent arrest and was verbally abusive to Plaintiff. Plaintiff was deprived of her home and left homeless because of the intentional acts of the officers.

The battery allegations and battery cause of action were not included in Plaintiff's government claim. These are new allegations and a new cause of action unique to the TAC. The County was not apprised of them in the claim, and therefore did not have the

opportunity to investigate and consider settling the matter prior to the complaint in this action being filed.

Plaintiff contends that a governmental claim is only necessary against an entity and not against individuals (Gov't Code § 950) and as County was dismissed from this COA, she can properly proceed against Hortz and Olukoju.

However, "[t]he drafters of the Tort Claims Act perceived that unless some kind of a claim procedure were made a precondition to suit against individual public employees, the protection provided by the requirement of a claim against the entity would be "largely negate[d]": "[I]f an action against the public entity were barred because a claim was not presented to the public entity ..., the claimant could, nevertheless, bring an action against the employee involved and recover a judgment which the public entity ordinarily would then be required to pay" without having had the opportunities for early investigation, prompt settlement, adequate defense, and remedial action the claim procedure was intended to provide. [Citation.] Accordingly the Legislature included in the Tort Claims Act what amounts to a requirement that (with exceptions not relevant here) one who sues a public employee on the basis of acts or omissions in the scope of the defendant's employment have filed a claim against the public-entity employer pursuant to the procedure for claims against public entities." (*Briggs v. Lawrence* (1991) 230 Cal. App. 3d 605, 613.) "Failure to allege compliance renders the complaint in such an action subject to general demurrer." (*Id.*) Further, "[e]xcept as provided in Section 950.4, a cause of action against a public employee or former public employee for injury resulting from an act or omission in the scope of his employment as a public employee is barred if an action against the employing public entity for such injury is barred under Part 3 (commencing with Section 900) of this division or under Chapter 2 (commencing with Section 945) of Part 4 of this division. This section is applicable even though the public entity is immune from liability for the injury." (Gov't Code § 950.2.) "This section, therefore, requires the presentation of a claim to the public entity in all cases, even where the action is filed against the public employee, himself, for injury resulting from an act or omission in the scope of his employment. Compliance with this requirement of filing a claim is an integral part of the plaintiff's cause of action that must be pleaded and proved by him." (*Williams v. Townsend*, 283 F. Supp. 580, 583 (C.D. Cal. 1968), disapproved of on other issue by *Donovan v. Reinbold*, 433 F.2d 738 (9th Cir. 1970).)

As County is liable for any damages awarded from the acts of the Hortz and Olukoju as they were officers acting within the course and scope of their job duties at the time of the incident, Plaintiff was required to file a complete and proper government claim that included the battery allegations. As Plaintiff failed to do that, the claims are barred against Hortz and Olukoju.

The Motion is **GRANTED** as to this COA.

4) Objections and Request to Take Judicial Notice

Plaintiff's Objections:

Hortz Decl.

Sustained as to Nos. 1 – 6 (*Fuller v. Superior Ct.* (2001) 87 Cal. App. 4th 299, 306.)

"[C]ourts must also consider the interests of the plaintiff in civil litigation where the defendant is exposed to parallel criminal prosecution. Plaintiffs are entitled to an expeditious and fair resolution of their civil claims without being subjected to unwarranted surprise. Among the myriad purposes of the civil discovery statutes is to safeguard against surprise and gamesmanship, and to prevent delay. [Citation.] It would be manifestly unfair to petitioners if the security guards were to invoke their privilege against self-incrimination and later elect to waive that privilege and testify at trial about the same matters. "A litigant cannot be permitted to blow hot and cold in this manner. [Citations.]" [Citation.] " '[T]he fact that a man is indicted cannot give him a blank check to block all civil litigation on the same or related underlying subject matter. Justice is meted out in both civil and criminal litigation" [Citations.]' " " (*Fuller v. Superior Ct.* (2001) 87 Cal. App. 4th 299, 306.)

Doty Decl.

Sustained as to Nos. 7 (hearsay, conclusion improperly elicited); 9 (legal conclusion, lacks foundation, speculation and lack of personal knowledge); and 10 (Plaintiff admitted to leaving the Garcia residence for three days to go to Las Vegas in violation of California's stay-at-home order." and "Nicole Garcia informed me that she had a special needs son for whom exposure to Covid-19 could be incredibly dangerous. Accordingly, Plaintiff reentering the residence could have had dire consequences." – lacks foundation and personal knowledge, improper conclusion).

Overruled as to Nos. 8 and 11 (mindset); and 10 ("I was concerned about Plaintiff reentering the residence due to her potential Covid-19 exposure." And "Plaintiff was forcibly coughing during the incident." – Personal observation).

Olukoju Decl.

Sustained as to Nos. 12 (double hearsay, lacks foundation, improper conclusion); 14 (legal conclusion, lacks foundation, speculation and lack of personal knowledge); and 15 (Plaintiff admitted to leaving the Garcia residence for three days to go to Las Vegas in violation of California's stay-at-home order." and "Nicole Garcia informed me that she had a special needs son for whom exposure to Covid-19 could be incredibly dangerous. Accordingly, Plaintiff reentering the residence could have had dire consequences." – lacks foundation and personal knowledge, improper conclusion).

		Overruled as to Nos. 13 and 16 (mindset); 15 ("I was concerned about Plaintiff reentering the residence due to her potential Covid-19 exposure." And "Plaintiff was forcibly coughing during the incident." – Personal observation). <u>Overstreet Decl.</u> Sustained as to No. 17 (hearsay, lacks foundation and personal knowledge, assumes facts not in evidence). <u>Request to Take Judicial Notice</u> Grant as to Executive Order N-28-20 pursuant to Evid. Code § 452(c), (g), and (h). <u>Defendants' Objections:</u> Sustained as to Nos. 1 (lacks foundation, speculation). Overruled as to Nos. 2, 4 (mindset). Not material (Civ. Proc. Code § 473c(q)) as to No. 3. Moving party to give notice of the above rulings, and file a proposed judgment with proof of service within 15 days.
10	Doyon et al v Mickle & Lucky Estates, LLC et al	<u>Motions 1 – 11:</u> On 9/15/23 and 9/18/23, Plaintiff Stephen Doyon (here, "Plaintiff") filed twelve discovery motions, one of which was heard on 10/16/23. The other 11 such motions are before the Court here. They are as follows: <u>a) Motions 1 & 2 (ROAs 46 and 66):</u> Plaintiff moves for orders to deem admitted the Requests for Admissions, Set One, as directed to defendants Rajwant Kaur ("Kaur") and Jazzy Gill aka Jazzy Singh ("Gill"), for failure to respond thereto, and for \$1,280.88 in sanctions on each such motion, against Gill and Kaur, respectively; <u>b) Motions 3-5 (ROAs 62, 82 and 50):</u> Plaintiff moves to compel responses without objections to Requests for Production, Set One, as directed to Defendant Mickle & Lucky Estates, LLC (here, "Owner"), Kaur and Gill, for failure to respond thereto, and for \$1,280.88 in sanctions on each such motion, against Owner, Kaur, and Gill, respectively; <u>c) Motions 6-8 (ROAs 70, 78 and 74):</u> Plaintiff moves to compel responses without objections to Special Interrogatories, Set One, as directed to Defendants Kaur, Owner, and Gill, for failure to respond thereto, and for \$1,280.88 in sanctions on each such motion, against Kaur, Owner, and Gill, respectively; and <u>d) Motions 9-11 (ROAs 54, 58, and 86):</u> Plaintiff moves to compel responses without objections to Form Interrogatories, Set One, as directed to Defendants Kaur, Owner, and Gill, for failure to respond thereto, and for \$1,280.88 in sanctions against Kaur and Gill, respectively, and for \$1,335.88 in sanctions against Owner.